

Order to Show Cause Re: Dismissal - Notice of Settlement

**Appearance required.**

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25CV-04746

Sikh Gurdwara of Los Banos vs. Surjit Singh, et al

Motion Defendant Surjit Singh's Notice of Motion and Motion for Preliminary Injunction

**The motion for preliminary injunction is DENIED.**

**Cross-Defendant's objection to the reply declarations submitted in support of the motion for preliminary injunction is SUSTAINED.**

This court previously stated a judge should generally avoid issuing a preliminary injunction that does not maintain the status quo of the litigation until a trial on the merits. Granting the preliminary injunction would materially change the positions of the parties and would not maintain the status quo.

Further, Defendant still has not shown a probability of success. The evidence in this matter is disputed. The fact that additional evidence continues to be presented underscores the court's finding that the evidentiary record is not sufficiently developed at this stage of litigation for the court to make a determination as to probability of either party prevailing on the merits.

As before, the moving party is free to circulate the court's order to any members of the church who are allegedly being misled so that everyone will know that the final determination of that dispute will be decided by the court following a trial on the merits.

**Accordingly, the motion is denied.**

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26CV-00012

Bruce Austin vs Infinity Management and Investments, LLC, et al.

Motion to Compel Further Responses to Special Interrogatories

**The motion to compel further responses to Special Interrogatories, Set One, is DENIED.**

As an initial matter, the motion is not untimely. The 45 day limitation in bringing a motion to compel further responses only relates to *verified responses* and not objection only responses.

Except as to Special Interrogatory No. 1, as with Plaintiff's prior motion to compel further responses, the accompanying separate statement fails to adhere to Rules of Court, rule 3.1345.

As for Special Interrogatory No. 1, the interrogatory contains multiple subparts in violation of Code of Civil Procedure section 2030.060, subdivision (f). Accordingly, the motion is denied.